

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 8, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV434290	Manuel Panilag vs Armando Contreras et al	Plaintiff's Motion to Compel Response to RTAO Debtor Discovery Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	24CV434290	Manuel Panilag vs Armando Contreras et al	Plaintiff's Motion to Compel Further Response to Special Interrogatories, Set One Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 3	24CV434290	Manuel Panilag vs Armando Contreras et al	Defendant New Chance's Motion for Protective Order Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 4	24CV434290	Manuel Panilag vs Armando Contreras et al	Plaintiff's Motion to Declare Armando Contreras a Vexatious Litigant Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 5	24CV446807	RYAN KOLSTAD vs SARAH EBRO et al	Motion: Quash Ctrl Click (or scroll down) on Line 5 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 6	24CV446807	RYAN KOLSTAD vs SARAH EBRO et al	Motion for In Camera Review Ctrl Click (or scroll down) on Line 5 for tentative ruling.

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LINE 7	24CV448687	ISJ General Trading, LLC vs Capital Asset Exchange and Trading, LLC	Hearing: Demurrer The Court has received no opposition from Plaintiff. “[T]he failure to file an opposition creates an inference that the ... demurrer is meritorious.” (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.) The Court has considered Defendant’s arguments. Good cause appearing, the demurrer to the second, third, and fourth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. Defendant to prepare the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
LINE 8	24CV452572	Gary Roberts vs CERBERUS SENTINEL et al	Motion: Change of Venue Ctrl Click (or scroll down) on Line 8 for tentative ruling.
LINE 9	25CV469588	WELLS FARGO BANK, NA vs ANTON MAKEDONOV	Motion: Judgment on Pleadings This motion has been CONTINUED to July 1, 2026, at 9:00 a.m. in Department 13 by <i>ex parte</i> order of May 7, 2026.

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LINE 10	25CV479611	Prakyath Madadi vs Tesla, Inc.	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 10 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	17CV314877	Econergy, Inc. vs Jaspal Singh Deol	Motion: Withdraw as Attorney Good cause appearing, the unopposed motion is GRANTED. The Court will sign the previously submitted Form MC-053.
9:01 LINE 2	21CV389732	Thai Quach et al vs Kristine Carash et al	Hearing: Claim of Exemption of Kristine Carash Ctrl Click (or scroll down) on Calendar 9:01 Line 2 for tentative ruling.
9:01 LINE 3	21CV389732	Thai Quach et al vs Kristine Carash et al	Hearing: Claim of Exemption of Julian Carash Ctrl Click (or scroll down) on Calendar 9:01 Line 2 for tentative ruling.

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Calendar Lines 1 - 4

Case Name: *Manuel Panilag vs Armando Contreras et al*

Case No.: 24CV434290

The following matters are before the Court: 1) Plaintiff's Motions to Compel Response to RTAO Debtor Discovery; 2) Plaintiff's Motions to Compel Further Response to Special Interrogatories, Set One; and 3) Plaintiff's Motion to Declare Armando Contreras ("Contreras") a Vexatious Litigant.¹

I.

Plaintiff's Motions to Compel Response to RTAO Debtor Discovery & Further Response to Special Interrogatories, Set One

This Court previously found that proceedings were stayed on April 28, 2025. As of April 28, 2025, all briefing dates related to these motions had passed, and these motions were set to be heard on April 29, 2025. The stay having been lifted and orders made during the stay vacated, these motions are returned to the *status quo ante* as of April 28, 2025.²

Plaintiff brings multiple motions to compel (form interrogatories, special interrogatories, request for production of documents, and requests for admission) and a request for sanctions. There is a valid proof of service for the motions and Plaintiff attempted to further meet and confer as ordered by the Court, without success. No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rule of Court, Rule 8.54(c).) Failure to oppose a motion leads to the presumption that Defendants have no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Plaintiff has met his burden of proof for each of the motions. Good cause appearing, the motions are GRANTED.

Defendants shall serve verified, code-compliant responses and responsive documents within 15 days of the date of the hearing on this motion and pay Plaintiff sanctions in the amount of \$5,500, also within 15 days of the date of the hearing on this motion. All objections have been waived.

¹ On April 16, 2026, Contreras filed a "Motion for Clarification of Court's March 19, 2026 Order." This "motion" was noticed for May 8, 2026, but was improperly filed without obtaining a hearing reservation for that date. Moreover, the notice filed on April 16, 2026, provides no statutory or other legal basis for the "motion." Accordingly, any purported "Motion for Clarification" is not on the Court's May 8, 2026 calendar, and the Court will not consider such a "motion" at this hearing. To the extent Contreras believes this "motion" may somehow be considered as part of the hearing on the pending discovery motions, he is incorrect. The Court ordered that there shall be no further briefing on these discovery motions both on February 25, 2025 (Minutes, 2/25/2025) and in its March 19, 2026 order.

² Despite the Court's invitation in its order of March 19, 2026, no party has advised the Court that any aspect of these motions has become factually moot.

II.

Defendant New Chance's Motion for Protective Order

This Court previously found that proceedings were stayed on April 28, 2025. As of April 28, 2025, all briefing dates related to this motion had passed, and this motion was set to be heard on April 29, 2025. The stay having been lifted and orders made during the stay vacated, this motion is returned to the *status quo ante* as of April 28, 2025.³

Defendant New Chance LLC's moves for a protective order regarding Plaintiff's requests for production of documents and first set of debtor interrogatories that he propounded. Defendant New Chance argues that the stated discovery improperly seeks production of documents from Defendants and that it must be protected from unwarranted, annoyance, embarrassment, or oppression, or undue burden or expense. Defendant also seeks monetary sanctions of \$7,500.¹⁵ Plaintiff opposes the motion.

The motion is DENIED in full. Plaintiff is entitled to propound such discovery after the issuance of a Right to Attach Order; further responses and responsive documents shall be provided within 15 days of the date of the hearing on this motion. (Code Civ. Proc., § 485.230). Sanctions in the amount of \$1,230 are awarded to Plaintiff, to be paid by Defendant New Chance LLC, within 15 days of the date of the hearing on this motion.

III.

Plaintiff's Motion to Declare Contreras a Vexatious Litigant

Plaintiff moves the Court "to declare Defendant Armando Contreras a Vexatious Litigant and for a prefilng order prohibiting him from filing any new litigation actions in the courts of this state in propria persona without first obtaining leave of the presiding judge and/or an order requiring Defendant Armando Contreras to post a bond." (Notice of Motion, filed 8/19/2025.)

The gravamen of Plaintiff's argument is that Contreras fits within the description of Code of Civil Procedure section 391 subdivision (b).⁴ That section defines vexatious litigant as follows: "'Vexatious litigant' means a person who does any of the following [including]: [¶] (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 391(b).)

The Court is not persuaded that Contreras's actions have met the standard for declaration as a vexatious litigant. Plaintiff's criticism of Contreras's cross-complaints does not

³ Despite the Court's invitation in its order of March 19, 2026, no party has advised the Court that any aspect of this motion has become factually moot.

⁴ The Court finds Plaintiff's reliance on section 391(b)(1) overstated and unpersuasive. "Litigation" is defined as "any civil action or proceeding" (§ 391(a).) Contreras has not commenced, prosecuted, or maintained in *propria persona* at least five civil action or proceedings resulting in a final adverse determination.

establish that Contreras's efforts are a flagrant abuse of the system or clearly meant to abuse the process. Some of the challenged behavior was not done in *propria persona*. In addition, Contreras prevailed on Plaintiff's most recent motion to strike Contreras's cross-complaint. (March 17, 2026 Order.) The allegation that Contreras has filed a separate action against the same parties who are subject to his cross-complaint is noteworthy, but it cannot at this stage be deemed to make him vexatious. As for Contreras's bankruptcy petitions and appellate activity, the record before the Court is insufficient to establish that these activities were sham or frivolous.

If a vexatious litigant declaration is to be based on repeated motions or filings, "[t]he repeated motions must be so devoid of merit and be so frivolous that they can be described as a " 'flagrant abuse of the system,' " have "no reasonable probability of success," lack "reasonable or probable cause or excuse" and are clearly meant to " 'abuse the processes of the courts and to harass the adverse party than other litigants.' " [Citation.]" (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 972.) While some of Contreras's filing activity has been unsuccessful, procedurally improper, and/or failed to make a statutorily required showing, "they cannot be said to be "sham" motions intended solely to harass." (*Wagner, supra*, 156 Cal.App.4th at p. 973.)

The Court is concerned with Plaintiff's allegation that Contreras has served "over 1500 discovery requests." Engaging in unnecessary discovery can make one a vexatious litigant. (Code Civ. Proc., § 391(b).) But to date, it appears any unjustified discovery pursuits on behalf of Contreras upon which the Court has ruled involved his prior counsel and have been addressed by orders denying Contreras's motions to compel and awarding sanctions against him. As for Contreras's compliance with his own discovery obligations and his compliance with court orders, any consequences in those areas remain to be seen, but such behavior does not make him a vexatious litigant.

The fact that New Chance is represented by counsel, as it must be, while Contreras remains in *pro per*, is not determinative of any issue. The Court will not venture into the nuances of any potential attorney-client relationship between Contreras and counsel for New Chance. While Plaintiff says that "Contreras very easily can be represented by the same counsel," it may not be so simple, and the Court will not speculate. That being said, the behavior of New Chance in this litigation, a similarly situated defendant now represented by presumptively competent and reputable counsel, may inform, by way of comparison, the propriety of Contreras's behavior moving forward. The Court hopes it will not have to revisit the question whether Contreras is a vexatious litigant again.

Lastly, with respect to a vexatious litigant declaration, "intent to harass" is a factor in consideration. While the Court is not finding that Contreras is a vexatious litigant on the record currently before it, the Court will remind Contreras that communication, even when couched as legal argument, that involves threats (professional or personal), personal attacks, extensive use of boldface type, and unequivocal accusations of dishonesty, for instance, is rarely helpful or persuasive. Such an approach may invite defensive accusations of harassment and further motions like this one. Dispassionate and reasoned discourse is the way of the law.

The Court will prepare the final order.

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Calendar Line 5 & 6

Case Name: *Ryan Kolstad v. Sarah Ebro*

Case No.: 24CV446807

Before the Court is Defendant Sarah Ebro's ("Defendant") motion to quash service of summons and Plaintiff's motion for an *in camera* review.

This is an action for fraud and invasion of privacy, among other things. Plaintiff Ryan Kolstad ("Plaintiff") alleges that after Defendant breached an oral agreement between the parties for Plaintiff to rent a room inside Defendant's residence, she made false allegations to law enforcement concerning threatening and harassing by Plaintiff in order to retaliate against him and exert control.

Defendant moves to quash service of summons pursuant to Code of Civil Procedure section 418.10, which provides that a defendant, on or before the last day of his time to plead or within any further time that the court for good cause may allow, may move to quash service of summons on the ground of lack of jurisdiction over her. (Code Civ. Proc., § 418.10, subd. (a).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) The plaintiff must demonstrate by a preponderance of the evidence that proper service of the summons and complaint was effectuated. (*Boliah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.)

Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421 ("*Craig*").) Once the presumption is dispelled, the trier of fact shall determine the existence or non-existence of the fact from the evidence and any appropriate inferences that may be drawn from it. (*Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1479.) Thus, once the presumption of proper service is gone, the trier of fact must weigh the evidence and decide whether or not service was effected pursuant to the applicable statutory requirements. (See *Craig, supra*, 84 Cal.App.4th at 421-22 ["[I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received."].)

Here, the proof of service filed for the operative Second Amended Complaint ("SAC") states that service was effectuated on Defendant personally on October 20, 2025 at 5:13 p.m. at 595 Gettysberg Drive in San Jose by Krystal M. Wallace, a registered California process server, of Bender's Legal Service, Inc. In order to accomplish personal service, a copy of the summons and complaint must actually be delivered to the person to be served. (Code Civ.

Proc., § 415.10.) This proof of service appears to be statutorily compliant, and thus creates a rebuttable presumption that service was proper.

In her motion, Defendant asserts that personal service on her was *not* properly effectuated because the summons and complaint were not handed to her by anyone who identified themselves as a process server, but rather simply left “loose” and unattended on her porch. (See Declaration of Sarah Ebro in Support of Motion to Quash Service of Summons (“Ebro Decl.”), ¶¶ 2-5.) Defendant includes a photograph which purports to show how the summons and complaint appeared at 595 Gettysberg Drive. (*Id.*, ¶ 4, Exhibit C.) She urges that such “drop” service does not satisfy the requirements of personal service.⁵ She further attaches the declaration of diligence filed by Ms. Wallace, wherein Ms. Wallace states that on October 20, 2025, she arrived at 595 Gettysberg Drive to begin a “stake-out.” (*Id.*, ¶ 6, Exhibit D.) She continues that at 5:02 p.m., Defendant arrived at the property in a white Tesla and Ms. Wallace “approached [her] and served her with her set of documents.” (*Ibid.*) Ms. Wallace further states that Defendant “then became uncooperative, and did not want to accept service for this defendant. Drop served on this occupant.” (*Ibid.*)

“Personal service usually contemplates actual delivery. But the person on whom service is sought may not, by merely declining to take the document offered, deny the personal service on the ground of lack of delivery, where under the circumstances it would be obvious to a reasonable person that a personal service was being effectuated.” (*Crescendo Corp. v. Shelved, Inc.* (1968) 267 Cal.2d 209, 212, citing 40 Cal.Jur.2d 66.) “In such a case the service may be made by merely depositing the process in some appropriate place where it would be most likely to come to the attention of the person being served.” (*Ibid.*) Attempted delivery to an uncooperative defendant, in his presence, is permitted. (See, e.g., *In re Ball* (1934) 2 Cal.App.2d 578, 579 [service deemed effective where server flung the process at a retreating defendant while telling him what it was]; *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 259-260 [personal service accomplished where process was placed under windshield of defendant’s retreating vehicle].) Importantly, cases where manual physical delivery has not happened but service has nevertheless been held to have been effectuated “do not rewrite the requirement of personal service and permit some other service, but rather, analyze the facts of the service and find they are tantamount to a personal delivery.” (*In re Abrams* (1980) 108 Cal.App.3d 685, 695.)

With the foregoing in mind, the Court finds that personal service was successfully effectuated on Defendant. Notably, nowhere in Defendant’s declaration does she explicitly dispute the facts asserted in Ms. Wallace’s declaration of due diligence, including that she was physically present at 595 Gettysberg around 5 p.m. and encountered Ms. Wallace. Defendant’s photos of the service and summons on her porch support Ms. Wallace’s version of events that Defendant refused to cooperate and accept service and thus that the papers were “dropped” on her. If the summons and complaint were not physically handed to Defendant because she refused to accept them, she cannot deny that service was made on her. Therefore, Defendant’s motion to quash is DENIED.

⁵ Defendant also notes that she had a protective order in place against Plaintiff at that time, but the Court does not believe this is relevant as service was not attempted by Plaintiff himself and there is no indication that the process server was otherwise restrained from being in close proximity to Defendant.

Plaintiff separately moves for an *in camera* review and preservation of an audio recording of a hearing in the small claims action 24SC091228 “for the sole purpose of verifying whether specific sworn testimony was given.” Plaintiff’s motion is DENIED. The Court may not be enlisted to conduct investigation to “verify” facts for a litigant. Moreover, Gov. Code § 69957(b) states that a recording made for the internal personnel purpose of monitoring the performance of subordinate judicial officers “shall not be used for any other purpose.” Plaintiff asks the Court to use the recording for an “other purpose.” Plaintiff provides no contrary persuasive authorities.

The Court will prepare the final order.

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Calendar Line 8

Case Name: *Gary Roberts vs CERBERUS SENTINEL et al*

Case No.: 24CV452572

Plaintiff moves to transfer the lawsuit that he filed in this court to the Santa Cruz County Superior Court. Citing Code of Civ. Proc., §§ 395 and 396b, Plaintiff lists several reasons why Santa Cruz County is the proper venue. The motion is unopposed.

It appearing to this Court that the action or proceeding was not commenced in the proper court, Plaintiff's motion is GRANTED, and the action or proceeding is hereby TRANSFERRED to the proper court, the Santa Cruz County Superior Court. (Code of Civ. Proc., § 395b(a).)

Plaintiff shall be responsible for all court fees and costs required for the transfer of the action and all fees and costs due to the receiving court. This includes a \$50.00 processing fee due to this court to process the transfer. Plaintiff is likewise responsible for the filing fee of \$435.00 payable to the receiving court. Plaintiff shall submit to the clerk of this Court a check in the amount of \$435.00 payable to the receiving court within 20 days of the date of the hearing on the instant motion.

Future court dates in this Court are VACATED.

The Court will prepare the final order.

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Calendar Line 10

Case Name: *Madadi v. Tesla, Inc.*

Case No.: 25CV479611

I. BACKGROUND

On April 11, 2023, Plaintiff Prakyath Madadi (“Plaintiff”) purchased a new 2023 Tesla Model 3, VIN No. 5YJ3E1EA5PF555074 (“Subject Vehicle”). (Complaint at ¶ 9.) Plaintiff ordered the vehicle online and in so doing, executed a Motor Vehicle Order Agreement (“MVOA”). (Declaration of Raymond Kim [“Kim Decl.”] at ¶ 3.) The MVOA contains an arbitration clause as follows:

Agreement to Arbitrate. Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates, (together “Tesla”).

If you have a concern or dispute, please send a written notice describing it and your desired resolution to resolutions@tesla.com

If not resolved within 60 days, you agree that any dispute arising out of relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. You further agree that any disputes related to the arbitrability of your claims will be decided by the court rather than an arbitrator, notwithstanding AAA rules to the contrary.

To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless provided by law. If you prevail on any claim, we will reimburse you your filing fee. The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org.

The arbitrator may only resolve disputes between you and Tesla, and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to

arbitrate cannot be enforced as to a particular claim or relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and any other claims must be arbitrated.

If you prefer, you may instead take an individual dispute to small claims court.

You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Order Number, or Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim Decl., Ex. 1 at p. 3.)

Plaintiff did not opt-out of the arbitration agreement. (Kim Decl. at ¶ 7.) Upon delivery of the vehicle, Plaintiff executed a Retail Installment Sales Contract (“RISC”). The RISC also includes an arbitration clause as follows:

ARBITRATION PROVISION

PLEASE REVIEW – IMPORTANT – AFFECTS YOUR LEGAL RIGHTS

- 1. EITHER YOU OR WE MAY CHOOSE TO HAVE ANY DISPUTE BETWEEN US DECIDED BY ARBITRATION AND NOT IN COURT OR BY JURY TRIAL.**
- 2. IF A DISPUTE IS ARBITRATED, YOU WILL GIVE UP YOUR RIGHT TO PARTICIPATE AS A CLASS REPRESENTATIVE OR CLASS MEMBER ON ANY CLASS CLAIM YOU MAY HAVE AGAINST US INCLUDING ANY RIGHT TO CLASS ARBITRATION OR ANY CONSOLIDATION OF INDIVIDUAL ARBITRATIONS**
- 3. DISCOVERY AND RIGHTS TO APEAL IN ARBITRATION ARE GENERALLY MORE LIMITED THAN IN A LAWSUIT, AND OTHER RIGHTS THAT YOU AND WE WOULD HAVE IN COURT MAY NOT BE AVAILABLE IN ARBITRATION.**

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees agents,

successors or assigns, which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action . . .

(Kim Decl., Ex. 2 at p. 5.)

Plaintiff brings this action for breach of express and implied warranties under the Song-Beverly Act against Defendant Tesla, Inc. (“Defendant”). Defendant filed the instant Motion to Compel Arbitration on December 17, 2025. Plaintiff filed his Opposition on April 8, 2025. Defendant filed its Reply on April 15, 2025.

II. LEGAL STANDARD

In ruling on a motion to compel arbitration, the Court must inquire as to (1) whether there is a valid agreement to arbitrate, and (2) if so, whether the scope of the agreement covers the claims alleged. (See *Howsan v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.) “Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitration. [Citations.] The threshold question requires a response because if such an agreement exists, then the court is statutorily required to order the matter to arbitration.” (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 19 [internal quotation marks omitted].) The arbitration clause at issue is subject to the Federal Arbitration Act.

“The FAA [Federal Arbitration Act], which includes both procedural and substantive provisions, governs [arbitration] agreements involving interstate commerce.” (*Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840.) However, “[t]he procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement.” (*Ibid.*) Here, the Agreement expressly provides “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (See *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122 [“[t]he phrase ‘pursuant to the FAA’ is broad and unconditional,” and unambiguously adopts both the procedural and substantive aspects of the FAA].)

Under the FAA, the Court must grant a motion to compel arbitration if any suit is brought upon “any issue referable to arbitration under an agreement for such arbitration” (9 U.S.C. § 3), subject to “such grounds as exist at law or in equity for the revocation of any contract...” (9 U.S.C. § 2). The moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. (See *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396 [under both federal and state law, “the threshold question presented by a petition to compel arbitration is whether there is an

agreement to arbitrate”]; *Rosenthal v. Great Western Fin’l Securities Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*) [moving party’s burden is a preponderance of evidence].) The burden then shifts to the resisting party to prove a ground for denial. (*Rosenthal, supra*, 14 Cal.4th at p. 413.)

“In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (*Pinnacle*).)

But the FAA’s policy favoring arbitration ... is merely an acknowledgment of the FAA’s commitment to overrule the judiciary’s longstanding refusal to enforce agreements to arbitrate and to place such agreements upon the same footing as other contracts. Or in another formulation: The policy is to make arbitration agreements as enforceable as other contracts, but not more so. Accordingly, a court must hold a party to its arbitration contract just as the court would to any other kind.

(*Morgan v. Sundance, Inc.* (2022) 596 U.S. 411 [internal citations and quotation marks omitted].)

III. ANALYSIS

Defendant argues Plaintiff’s claims for the manufacture, sale, and repair of the vehicle fall within the scope of the arbitration clauses for both the MVOA and RISC. (Mtn. to Compel Arbitration at pp. 7:4-8:12.) Moreover, Defendant argues courts have recognized the validity of “clickwrap” or “clickthrough” agreements like the one at issue here. (*Id.* at pp. 8:13-9:8.) Thus, Plaintiff has agreed to be bound by the MVOA.

Plaintiff challenges the sufficiency of the Declaration of Raymond Kim (“Kim Declaration”) in so far as it fails to depict the website and hyperlinks where notice was provided of the MVOA. (Opposition at pp. 2:19-3:4.) Plaintiff argues the MVOA does not contain a VIN No., which did not exist at the time it was executed. (*Id.* at p. 3:8-11.) Plaintiff further notes that the RISC contains an integration clause providing this instrument to be the entire agreement between the parties. (*Id.* at p. 4:22-28.) Plaintiff argues the MVOA only pertains to the order of the Tesla vehicle and nothing else. (*Id.* at p. 10:1-3.)

The Court first addresses whether a valid agreement to arbitrate exists. It then proceeds to consider whether the dispute falls within the scope of the agreements.

A. Whether an Agreement to Arbitrate Exists

“While Internet commerce has exposed courts to many new situations, it has not fundamentally changed the requirement that ‘ “[m]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.”’ (*Nguyen v. Barnes & Noble Inc.* (2016) 245 Cal.App.4th 855, 862 (*Long*). Mutual assent is determined under an

objective standard applied to the outward expressions of the parties, with due regard for context. (See *ibid.*) “California law is clear—‘an offeree, regardless of apparent manifestation of his consent is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.’ [Citation.]” (*Ibid.*)

Courts have distinguished between “two flavors” of Internet contracts: “ ‘ “clickwrap” (or “click-through”) agreements, in which website users are required to click on an “I agree” box after being presented with a list of terms and conditions of use; and “browsewrap” agreements, where a website’s terms and conditions of use are generally posted on the website via a hyperlink at the bottom of the screen.” (Long, *supra*, 245 Cal.App.4th at p. 862 [quoting *Nguyen, supra*, 763 F.3d at pp. 1175-1176].) “Some internet contracts are a blend of the two, and have been called a ‘hybrid design,’ ‘modified clickwrap’, or ‘sign-in wrap’ agreement. ‘Sign-in-wrap’ agreements are those in which a user signs up to use an internet product or service, and the signup screen states that acceptance of a separate agreement is required before the user can access the service.” (*Colgate v. Juul Labs, Inc.* (N.D. Cal. 2019) 402 F.Supp.3d 728, 763.)

The Kim Declaration outlines the following process that was followed in this case:

4. Plaintiff placed the order for the Subject Vehicle by clicking a button that read “Place Order” on Tesla’s website. Plaintiff would not have been able to place the order without clicking this button on Tesla’s website or authorizing someone to do so on their behalf. Immediately below the “Place Order” button would have appeared text in bold font advising Plaintiff that by clicking “Place Order” he would be agreeing to terms and conditions of the MVOA. The Motor Vehicle Order Agreement appeared in bold font and was displayed as a hyperlink. If Plaintiff clicked on this hyperlink, a new window would have opened revealing the agreement or policy described in the hyperlink.

(Kim Decl. at ¶ 4.)

At first glance, the procedure followed seems to set up a hybrid design where clicking the Place Order button itself manifests assent to the terms but the Order Agreement is separately provided through a hyperlink. However, since prior to placing the order, Plaintiff sees a text that advises him that agreeing to the order means that he is agreeing to the Order Agreement, the Court construes this to be a clickwrap agreement where notice of the specific intent to assent to the contract is provided. (Second Declaration of Raymond Kim [“Second Kim Decl.”], Ex. 3.)

Clickwrap agreements are generally enforceable. (See *Disney Enters. v. Redbox Automated Retail, LLC* (C.D. Cal. 2018) 336 F.Supp. 3d 1146, 1153; *In re Facebook Biometric Info. Privacy Litig.* (N.D. Cal. 2016) 185 F.Supp. 3d 115, 165.) (Reply at p. 2:20-21.) In fact,

courts have consistently enforced modified clickwrap agreements less conspicuous than those at issue here. (See *Lee v. Ticketmaster L.L.C.* (9th Cir. 2008) 817 F.App’x 393, 394-395; *Dohrmann v. Inuit, Inc.* (9th Cir. 2020) 823 F.App’x 482, 484.)

To the extent Plaintiff argues Defendant failed to offer any evidence concerning the website and the depiction of the hyperlinks, the court in *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158 (*Gamboa*) has aptly summarized the process for challenging the authenticity of an agreement to arbitrate:

[T]he moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” [Citation.] The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” [Citation.] Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion. [Citations.] For this step, “it is not necessary to follow the normal procedures of document authentication.” [Citation.] If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citations.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [Citations.]

If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.

(*Id.* at pp. 165-166 [citing and quoting *Rosenthal, supra*, 14 Cal.4th at p. 413; *Bannister v. Marindence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219 (*Condee*); Cal. Rules of Court, rule 3.1330].)

Here, Defendants have met their prima facie burden of proving a written agreement to arbitrate by setting forth the provisions in the motion and attaching verbatim copies. Nevertheless, as noted in both *Gamboa* and *Condee*, “[f]or purposes of a petition to compel

arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166; *Condee, supra*, 88 Cal.App.4th at p. 219.) (Reply at p. 1:15-17.) Moreover, “the custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758-759.) Mr. Kim adequately describes the website and where the hyperlinks to the MVOA can be found, and includes a corresponding depiction of the website on Reply. (Kim Decl. at ¶ 4; Second Kim Decl, Ex. 3.) (Reply at p. 2:13-19.) The clickwrap agreement here is enforceable and the MVOA is a valid agreement to arbitrate.

Plaintiff argues the RISC contains an integration clause and supersedes the MVOA. The integration clause provides, “**HOW THIS CONTRACT CAN BE CHANGED.** This contract contains the entire agreement between you and us relating to this contract. Any change to the contract must be in writing and both you and we must sign it. No oral changes are binding.” (Kim Decl., Ex. 2 at p. 6.) Plaintiff is incorrect that Defendant does not move to arbitrate under the RISC. Defendant moves to arbitrate under both the MVOA and the RISC. The RISC bears Plaintiff’s signature and includes an arbitration clause that is outlined in bold lettering. Accordingly, a valid agreement to arbitrate exists under both the MVOA and the RISC.

B. Scope of the Arbitration Agreements

The arbitration clause in the MVOA provides that it shall apply to “any dispute between you and Tesla, Inc. and its affiliates . . .” (Kim Decl., Ex. 1 at p. 3.) The RISC provides that arbitration shall apply to “any claim or dispute, whether in contract, tort, statute, or otherwise . . .” (*Id.*, Ex. 2 at p. 5.) Plaintiff’s claims here concern the breach of express and implied warranties under the Song-Beverly Act. Both the MVOA and RISC are broadly worded and thus include the nature of Plaintiff’s claims.

Plaintiff, however, argues manufacturer warranties are independent of retail sales contracts and do not arise from the contractual relationship between buyer and seller. (Opposition at pp. 3:27-4:2.) Plaintiff cites *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825 (*Davis*) in support. (*Ibid.*) There, the Court noted “[u]nder California law, manufacturer warranties that accompany the sale of the vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract.” (*Id.* at p. 837.) There, the sales contract between the plaintiff and dealership expressly included “ ‘no warranty, nor any assurance regarding the quality of the vehicle sold, nor any promised repairs or other remedies in the event problems arise.’ ” (*Ibid.* [internal citations omitted].) The sales contract there and in other similarly situated cases disclaimed any warranty on the part of the dealership. (*Ibid.*) The court noted that “ ‘[t]his differentiation . . . demonstrates an intent to distinguish and distance the dealership’s purchase agreement from any warranty that [Nissan] ‘may’ provide.’ ” (*Ibid.* [internal citations omitted].)

Here, the MVOA cites the Tesla New Vehicle Warranty and Tesla Used Vehicle Limited Warranty. (Kim Decl., Ex. 1 at p. 4.) It references a copy of the warranty with a hyperlink to the website. (*Ibid.*) On the other hand, the RISC provides:

If you do not get a written warranty, and the Seller does not enter into a service contract within 90 days from the date of this contract, the Seller makes no warranties, express, or implied on the vehicle, and there will be no implied warranties of merchantability or of fitness for a particular purpose.

This provision does not affect any warranties covering the vehicle that the vehicle manufacturer may provide. If the Seller has sold you a certified used vehicle, the warranty of merchantability is not disclaimed.

(Kim Decl., Ex. 2 at p. 4, ¶ 4.) Thus, the warranty is only disclaimed if Defendant does not enter into a service contract within 90 days. There is no indication that the Defendant failed to do so here. Thus, unlike *Davis* and the cases cited therein, there is no clear intent to distinguish and distance the dealership's purchase agreement from any warranty it may provide. Therefore, the breach of warranty claims arise under the scope of both agreements.

As noted by Defendants, all of Plaintiff's claims arise out of the relationship between him and Tesla. (Reply at p. 5:10-11.) "There would be no claim for breach of warranty under the Song-Beverly Consumer Warranty Act but for these relationships, as Plaintiff's Claims in the Complaint allege that this action arises out of the warranty obligations of Tesla, for a vehicle purchased by Plaintiff, for which Tesla issued a written warranty, and for which implied warranties arose by virtue of the purchase." (*Id.* at p. 5:14-18.)

The Court need not address Defendant's preemptive unconscionability arguments. (See Mtn. to Compel Arbitration at pp. 10:23-12:13.) The enforceability of the agreements has not been raised by Plaintiff. Since the Court has determined that valid agreements to arbitrate exist and the claims fall within the scope of those agreements, the Motion to Compel Arbitration is GRANTED.

IV. CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is hereby STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

The June 18, 2026, Case Management Conference is VACATED.

A Status Review re: Arbitration shall be set for February 5, 2027, at 11:00 a.m. in Department 13.

The Court will prepare the final order.

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Calendar 9:01 Lines 2 & 3

Case Name: *Thai Quach et al vs Kristine Carash et al*

Case No.: 21CV389732

Judgment Debtors Kristine Carash and Julian Carash each claim an exemption of \$2,088.00 from a Bank of America account ending 8797 (x8797). Neither states any facts to support the claim. The extent of their factual assertions is “See CCP Sec. 704.220.” Plaintiff opposes the claims of exemption.

On May 5, 2026, Judgment Debtors filed for Chapter 11 bankruptcy. Accordingly, all enforcement efforts are stayed. Thus, the hearings on these claims of exemption are OFF CALENDAR WITHOUT PREJUDICE.

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